

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302810	WALTERS WHOLESALE ELECTRIC CO, VS ONARCH INC.	MOTION TO VACATE DISMISSAL

Tentative Ruling: GRANTED per CCP473.5

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404876	PORTOBANCO VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: PROOF OF SERVICE: Proper

GRANT the motion and award Plaintiff the reduced amount as follows: \$8140.00 in attorney's fees and \$818.92 in costs. The total amount is \$8958.92.

This is a lemon law action. On June 30, 2020, Plaintiffs Maria De Jesus Portobanco and Luis Andres Garibay purchased a 2020 GMC Sierra 1500 (the "Vehicle") that Defendant General Motors LLC (or "GM") issued an express warranty for. The Vehicle suffered defects and nonconformities that manifested during the applicable warranty period. None of the repairs performed by Defendant's authorized repair facilities have permanently repaired the defects. GM has failed to replace the Subject Vehicle or promptly make restitution as required under the Song-Beverly Act (the "Act").

The operative Complaint, filed August 22, 2024, asserts causes of action for (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act and (2) Breach of Express Warranty under the Song-Beverly Warranty Act.

On December 30, 2025, Plaintiff filed a Notice of Conditional Settlement of Entire Case.

Plaintiffs now move for an award of \$15,050 in attorney fees and \$968.92 in costs for a total of \$16,018.92. Plaintiffs contend they are entitled to the foregoing as the

prevailing party in the instant lawsuit, which settled a few weeks before a jury trial was to commence on January 9, 2026. Plaintiffs maintain the fees are reasonable.

In opposition, GM argues Plaintiffs failed to show the fees claimed are allowable, were reasonably necessary for litigation, and were reasonable in amount. GM contends it offered to pay attorneys' fees in the amount of \$10,000 in December 2025 when Plaintiffs' billing records show they only incurred \$8,445 in fees. GM requests the Court to reduce Plaintiffs' request to an amount that does not exceed \$4,992.80 and \$551.18 in costs.

A declaration was filed by counsel on June 18, 2026, arguing other courts here in Riverside have awarded higher billing rates.

The parties do not dispute that Plaintiffs are entitled to reasonable attorney fees and costs. As part of the parties' settlement, GM agreed to pay Plaintiffs' attorney fees and costs. (Nita Decl., ¶7; see Bowton Decl., ¶12.) At issue is the reasonableness of Plaintiffs' award request.

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller.) (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure).) The court

does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Plaintiffs' fee bill is supported by itemized time records and declaration from counsel. Such verified fee bills are entitled to a presumption of reasonableness; the burden therefore falls on GM to rebut that presumption with specific evidence. (*Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682-683.) GM must "establish with legal authority or otherwise what hours and rates would be considered reasonable." (*Etcheson v. FCA US LLC* (2018) 30 Cal.App.5th 831, 838.)

Plaintiffs provide the following breakdown of the requested attorneys' fee award:

<u>Billers (2025)¹</u>	<u>Time</u>	<u>Rate/hr</u>	<u>Total \$</u>
M. Nicholas Nita, Esq.	12.1	\$625	\$7,562.50
Justin P. Wisnewski, Esq.	1	\$400	\$400
Madalina Costescu, Sr. Paralegal	4.6	\$250	\$1,150
Jovanna Garay, Paralegal	6.4	\$250	\$1,600
Sophia Aguilar, Paralegal	3.3	\$250	\$825
Kaylee Can Wang, Law Clerk	0.6	\$250	\$150
Jessica Araiza, Legal Assistant	1.1	\$200	\$220
Jennifer Cruz, Legal Assistant	0	\$200	\$0
Elena Olsen Valdez, Settlement Coordinator	2.1	\$200	\$420
Alex Martinez, Legal Assistant	2	\$150	\$300

¹Nita's declaration does not provide a biography for Paralegal Sophia Aguilar, but gives a profile for Andrew Kim, paralegal. Accordingly, the breakdown chart documents timekeepers who appear on the itemized billing invoice.

Anticipated review opp/reply/attend hg by Nicholas Nita	2.5	\$625	\$1562.5
		Total Fees ²	\$14,190
		Costs	\$968.92
		Total Request	\$15,158.92

i. Reasonable Hourly Rate

Plaintiffs provide no evidence that they could not secure a local attorney and as such, the out-of-town attorney's home market rate should not be applied. (See Plaintiff Decl.; *Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

The hourly rates do not appear to be reasonable for Riverside County. Thus, the Court should reduce the hourly rates as stated in the chart below: \$550/hour for partners and senior counsel, \$300/hour for associates, and \$150/hour for law clerks/paralegals.

Moreover, there is no basis to have 9 timekeepers on one non-complex lemon law case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) Thus, the Court should strike a timekeeper with an hour or less time as merely superfluous, to wit: Justin P. Wisnewski and Kaylee Wang.

ii. Reasonable Hours

² Plaintiffs erroneously report \$15,050, which erroneously sums up the total request to \$16,018.92

The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

GM challenges specific billing entries.

Pre-engagement Work (3.0 hours). Contrary to GM's argument, Plaintiffs are entitled to recover such costs. Plaintiff, as the prevailing party, is entitled to attorneys' fees that are "fully compensatory," and absent "circumstances rendering an award unjust," a fee award should ordinarily include compensation for all hours reasonably expended. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.) This includes pre-engagement work. This request for reduction is **DENIED**.

Templated Complaint (1.5 hours), Discovery Responses (3.0 hours), Expert Designation (0.4 hours). Plaintiffs' counsel asserts he developed discovery templates over years of practice to only charge a small amount of time. GM argues a reduction of the time spent on the Complaint by 1.2 hours, discovery responses by 2.2 hours, and expert designation by 0.3 hours is warranted due to the templated nature. GM provides a side-by-side comparison of the aforementioned documents across cases. (Bowton Decl., Exhs. A, B, C & D.) While templates do enable efficiency and a reduction of costs, some reduction is appropriate given the conceded templated nature of the documents and the use of six timekeepers for discovery. Thus, the Court **REDUCES** the time as follows: by 0.5 hours for the Complaint and by 1 hour for discovery. **DENY** reduction for expert designation.

Motion for Attorney Fees. GM requests reduction because 13.9 hours in connection with this fee motion is excessive. GM's objection is well taken. Plaintiffs seek 2.5 hours in anticipation of reviewing and analyzing the opposition, drafting a reply and

attending hearing on this motion. However, no reply was filed. Moreover, there is no reason why such a routine fee motion should require more than 4.0 hours to draft.

Clerical Error in Billing. GM disputes the June 30, 2025, entry because while it reflects Counsel only billed 0.1 hours for this task, attorney Nita recorded a full hour. It does appear this may be a clerical error. Reduction will be accounted for in the chart summary below.

Clerical Work. GM argues that Counsel billed for clerical work “throughout” the billings. However, GM fails to specify which entries despite providing specific entries in dispute for the previous categories. It is GM’s burden to specify. (See *Premier Med. Mgmt. Systems, Inc. v Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) Regardless, it appears work done by the settlement coordinator, Elena Olsen Valdez or “EOV”, appears to be clerical. Thus, **REDUCE** by 2.1.

iii. Costs

A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).)

Plaintiffs filed a Memorandum of Costs seeking \$968.92 for filing and motion fees, jury fees, service of process fee, and fees for electronic filing or service. These fees are allowable costs under Code of Civil Procedure section 1033.5, subdivision (a)(1), (4), and (14). Thus, the Court should award these allowable costs as required under Code of Civil Procedure section 1033.5, subdivision (c)(1).

GM argues counsel presents no evidence to support the claim for costs and disputes all of the costs as not actually or reasonably incurred. Supporting documentation such as bills or invoices are not required, unless costs are put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) “[T]he burden is on the

objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) “If the items are properly objected to, they are put in issue and burden of proof is on the party claiming them as costs.” (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 774.) “The determination of the necessity and reasonableness of a particular expense [is] within the broad discretion of the court.” (*Perko’s Enterprises, Inc. V. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 243.)

Plaintiffs failed to provide supporting documentation for costs incurred. However, it appears filing and motion fees and service of process fees are reasonable and actually incurred since the Complaint and motions were served. GM filed an Answer indicating service of process fees by Plaintiff actually incurred. (Bowton Decl., ¶4.) However, this case never went to trial. Thus, the \$150 jury fee should be taxed.

The Court awards as follows:

<u>Biller (2025)</u>	<u>Time</u>	<u>Rate/hr</u>	<u>Total \$</u>
M. Nicholas Nita, Esq.	10.1	\$550	\$5,555
Madalina Costescu, Sr. Paralegal	4.6	\$150	\$690
Jovanna Garay, Paralegal	4.9	\$150	\$735
Sophia Aguilar, Paralegal	3.3	\$150	\$495
Jessica Araiza, Legal Assistant	1.1	\$150	\$165
Jennifer Cruz, Legal Assistant	0	\$150	\$0
Elena Olsen Valdez, Settlement Coordinator	0	\$150	\$0
Alex Martinez, Legal Assistant	2	\$150	\$300

Anticipated review opp/reply/attend hg by Nicholas Nita	0.5	\$400	\$200
		Total Fees	\$8,140
		Costs	\$818.92
		Total Request	\$8,958

The Court awards the Plaintiffs' attorney fees as follows: \$8,140 and \$818.92 in costs. The total amount is \$8958.92.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505093	WEIR VS TRICON RESIDENTIAL	MOTION TO STRIKE 1ST AMENDED COMPLAINT

Tentative Ruling:

CONTINUE

The hearing on the motion to strike is continued. Defendant is ordered to ***meet and confer in person, or via phone or videoconference*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrers. As part of the meet and confer process, Defendant shall identify the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. Plaintiffs shall provide legal support for their position that the pleading is legally sufficient or, in the alternative, how the complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 15 days before the continued hearing date set above do one of the following:

- (1) vacate the hearing on the motion to strike, and file an Answer;
- (2) file with the court a declaration stating the parties have agreed that Plaintiff will file a stipulation and amended complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the motion to strike and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 435.5.)